

The proposed order lodged with the court will be processed forthwith.

The court appreciates that while a meet and confer is not required by the Code of Civil Procedure, attorney Carr still made the effort.

Capital One N.A. v. Jose Melchor
Case No. CL25-11075

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant JOSE MELCHOR's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc., § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

MIGUEL HERRERA GARCIA, individually and on behalf of other members of the general public similarly situated, vs. CHAMPION SCAFFOLD SERVICES INC. Case No. CU24-06466

Motion for Final Approval of Class Action and PAGA Settlement

TENTATIVE RULING:

Parties to appear.

Plaintiff MIGUEL HERRERA GARCIA moves for final approval of the settlement reached with Defendant CHAMPION SCAFFOLD SERVICES. The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business